

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY 2
Cotabato City

First Regular Session

BTA PARLIAMENT
BTA Parliament Bill No. 04

Bangsamoro Autonomous Region in Muslim Mindanao
Parliament
BILLS AND INDEX DIVISION
RECEIVED
Name: ADULT DICTUM Signature: [Signature]
Date: SEP 19 2022 Time: 8:45 AM

Introduced by:
MP ENGR. BANTAN ADIL-AMPATUAN, MNSA

Co-authored by:
MP Atty. Laisa M. Alamia, RN, CESE, MNSA; MP Amilbahar S. Mawallil; MP Atty. Rasol Y. Mitmug, Jr., CESE; MP Engr. Don Mustapha A. Loong, JD, CESE; MP Atty. Suharto M. Ambolodto, CSEE, MNSA; and MP Rasul Enderez Ismael

AN ACT
STRENGTHENING VOLUNTEERISM IN THE BANGSAMORO
AUTONOMOUS REGION IN MUSLIM MINDANAO (BARMM), PROVIDING
FUNDS THEREFOR, AND FOR OTHER PURPOSES

Explanatory Note

"And whoever volunteers good [i.e. excess] – it is better for him."
– (Holy Qur'an 2:184)¹

"And whoever volunteers good – then indeed, Allah is Appreciative and Knowing."
– (Holy Qur'an 2: 158)²

Volunteerism in Islam

Volunteerism is not a new concept in Islam. One of the five pillars of Islam is the giving of *zakat* and one of the forms of giving *zakat* is through volunteerism.³ It is a very broad concept that encompasses whatever one does for the benefit of others for the sake of Allah.⁴ Moreover, it is also a cornerstone of Muslim tradition to render acts of service and to be in the aid of others.⁵

¹ <https://saudigazette.com.sa/article/532569>

² <https://saudigazette.com.sa/article/532569>

³ <https://productivemuslim.com/benefits-of-volunteering/>

⁴ http://irep.iium.edu.my/6624/2/Kabuye_Uthman_Sulaiman.pdf

⁵ <https://messageinternational.org/society/volunteerism-in-islam-meaning-motive-and-approach/>

According to Dr. Ahmad Hussein Sakr of the Islamic Research Foundation International (IRFI), Inc., Islam is a faith of action and as Muslims, we are encouraged to take on a broader role by working to improve the communities we live in. One of the ways in which we can take on a broader role is through volunteerism. It is a practice that we should cultivate as it is one of the lifebloods of any community. It is because of volunteers that communities are able to run organization, perform social services, feed the hungry, shelter the homeless, open libraries, run schools, set up blood banks, and et cetera. It is by translating our love of Allah into good actions, like volunteerism, that we strengthen our *imaan*.⁶

According to Kabuye Uthman Sulaiman of the International Islamic University Malaysia⁷ in his article titled "Volunteerism from the Islamic Perspective"⁸, the Arabic concept for volunteerism is called "*al-Tatawwu*", derived from the word "*tawa'a*", an Arabic verb which means "performing an action willingly". In the same article, it was also stated that there are several terms in Arabic which have the same meaning as that of "*al-Tatawwu*", namely, "*al-Tanafful*" or supererogation or the performance of more than what is asked for, such as the performance of additional "*ibadat*" or acts of worship, like salat, zakat, and hajj; "*al-Ihsan*" or philanthropy or technically, "doing beautiful things"; and "*al-Ithar*" or unselfishness or to give preference over oneself in terms of benefit or repulsion."⁹

Volunteerism as an international concept

The United Nations Volunteers (UNV) promotes the power of volunteerism. Globally, volunteers are motivated by values like those of justice, equality, and freedom, as expressed in the United Nations Charter, with the end goal of improving the well-being of all of the people in the world. According to the State of the World's Volunteerism Report 2021: Volunteering and the 21st Century Social Contract Draft concept, March 2021, "volunteerism, in its various forms, has often been positioned as a universal asset which can help shape, localize and achieve development goals."¹⁰

It is well-noted that as United Nations, we have a set of 17 Sustainable Development Goals (SDGs), which are universal goals and a set of bold commitments to the people of the planet Earth "to end poverty, fight inequality and injustice and tackle climate change by 2030". These SDGs were adopted by world leaders at the United Nations Sustainable Development Summit in September of 2015. They call for a consistent change in attitudes and behaviors amongst people, as well as consistent contributions through concerted actions such as volunteerism. In fact, the 2030 Agenda for Sustainable Development "explicitly recognizes volunteer groups as stakeholders to achieve the 17 SDGs" as "voluntary participation is embedded as part of the evolving "social contract", an evolving agreement between people and states

⁶ https://www.irfi.org/articles/articles_901_950/volunteerism_in_islam.htm

⁷ Kabuye Uthman Sulaiman, Assistant Professor, Department of General Studies, Kulliyah of Islamic Revealed Knowledge and Human Sciences, International Islamic University Malaysia

⁸ http://irep.iiu.edu.my/6624/2/Kabuye_Uthman_Sulaiman.pdf

⁹ Note: Like many concepts in Islam, all three words have comprehensive meanings, but for ease of understanding, those provided in the paragraph are their technical meanings, as provided in the paper of Kabuye Uthman Sulaiman.

¹⁰ <https://knowledge.unv.org/sites/default/files/2021-03/SWVR%20Concept%20Note%202021%20v1.pdf>

on their mutual roles and responsibilities towards the fulfilment of the SDGs.”¹¹ This is because globally, volunteers facilitate changes in mindsets by raising awareness, championing those changes and inspiring others,” as well as acting on those changes. ¹²Notably today, people engage in volunteerism for a myriad of reasons, these reasons including the elimination of poverty, the improvement of basic health and education, the provision of safe water supply and adequate sanitation, tackling environmental issues and climate change, reducing and managing the risk of disasters, or combatting social exclusion and violence.¹³

Around the world, volunteerism has become a powerful tool “to expand and mobilize constituencies, and to engage people in the planning and implementation of the SDGs”. Volunteerism has been seen to create a productive relationship between states and people as it helps localize the achievement of the SDGs, through “spaces of interaction between governments and people” to create and device concrete and scalable actions.¹⁴

Volunteerism during the COVID-19 Pandemic

Even at the heart of the COVID-19 pandemic which shocked the world in 2020 to this day, volunteers have gone through extraordinary and exceptional lengths to provide aid and display solidarity across the world. According to United Nations Secretary-General António Guterres, “volunteers have been assisting vulnerable groups, correcting misinformation, educating children, providing essential services to the elderly, and supporting front-line health workers”.¹⁵

Volunteerism in the Philippines

Volunteerism is also not a novel concept in the Philippines. The concept of “*bayanihan*” has flourished and lived on in every Filipino community since time immemorial. The term relates to the ancient practice of helping each other move homes and has been associated with voluntary cooperation.¹⁶ The practice of *bayanihan* has transcended and evolved to engage all sectors, namely the government, civil society organizations, academic institutions, businesses, private persons, and et cetera. The Philippine Government gives paramount importance to the proactive participation of the people as volunteers and as prime movers of development who work hand-in-hand with the duty-bearers through volunteer engagements. It is not only a practice, but is centuries-worth of pure Filipino tradition that has been embedded to its culture to promote the welfare of an entire community and every Filipino in need.¹⁷

Volunteerism in the Bangsamoro

¹¹ <https://knowledge.unv.org/sites/default/files/2021-03/SWVR%20Concept%20Note%202021%20v1.pdf>

¹² <https://www.unv.org/volunteerism-and-global-goals>

¹³ <https://www.unv.org/power-volunteerism>

¹⁴ <https://www.unv.org/volunteerism-and-global-goals>

¹⁵ <https://www.un.org/en/coronavirus/covid-19-drives-global-surge-volunteering>

¹⁶ <https://www.goldinstitute.org/news/9-leadership-development/1082-volunteering-the-key-to-peace-in-bangsamoro>

¹⁷ https://www.pnvsca.gov.ph/?page_id=92

In the Bangsamoro Autonomous Region, volunteerism has long been practiced too, and has a significant impact in sustaining the gains of the peace process. According to Goldin Institute Global Fellow Lo Ivan Castillon, volunteerism "is the key to peace in the Bangsamoro." He also states that there is a strong relationship between peace-building and volunteerism as it generates forms of social capital that are indispensable to peace-building and "the promotion of social cohesion, reconciliation, civic engagement, and the development of local human capacities."¹⁸

There are many volunteers in the Bangsamoro but most of them are not always documented or recognized. We do, however, have the Bangsamoro Youth Transition Priority Agenda (BYTPA) of the Bangsamoro Youth Commission (BYC), which focus on active participation and volunteerism. However, there is a lack of any formal organization that focuses on, caters to, or assembles volunteers concerning different modes of volunteerism.

There is a need to encourage not only the youth, but also other organizations to engage in volunteerism in the Bangsamoro, given that the BARMM is a disaster-prone region, and a region which is in need of more private intervention, in cooperation with the primary government duty-bearers, to help attain the SDGs and address issues in the grassroots.

There is a need for the Bangsamoro Government to recognize, support, and promote volunteerism in order to multiply the forces of the government, in cooperation with volunteers, especially in the geographically isolated and disadvantaged areas.

In view of the foregoing, the approval of this measure is earnestly sought.



ENGR. BAIN TAN ADIL-AMPATUAN, MNSA

¹⁸ <https://www.goldininstitute.org/news/9-leadership-development/1082-volunteering-the-key-to-peace-in-bangsamoro>

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY 2
Cotabato City

First Regular Session

BTA PARLIAMENT
BTA Parliament Bill No. 04

Bangsamoro Autonomous Region in Muslim Mindanao
Parliament

BILLS AND INDEX DIVISION

RECEIVED

Name: ADELPH D. DUTUA Signature: 
Date: 09/19/22 Time: 8:45 AM

Introduced by:
MP ENGR. BANTAN ADIL-AMPATUAN, MNSA

Co-authored by:
MP Atty. Laisa M. Alamia, RN, CESE, MNSA; MP Amilbahar S. Mawallil; MP Atty. Rasol Y. Mitmug, Jr., CESE; MP Engr. Don Mustapha A. Loong, JD, CESE; MP Atty. Suharto M. Ambolodto, CSEE, MNSA; and MP Rasul Enderez Ismael

AN ACT
STRENGTHENING VOLUNTEERISM IN THE BANGSAMORO
AUTONOMOUS REGION IN MUSLIM MINDANAO (BARMM), PROVIDING
FUNDS THEREFOR, AND FOR OTHER PURPOSES

Be it enacted by the Parliament of the Bangsamoro Autonomous Region in Muslim Mindanao assembled:

Section 1. Title. – This Act shall be known as the “*Bangsamoro Volunteerism Act of 2022*”.

Section 2. Declaration of Policy. – It is the declared policy of the Bangsamoro Government to provide, maintain, and ensure delivery of basic and responsive services to the Bangsamoro people and other inhabitant of the Bangsamoro Autonomous Region. In pursuing this mandate, the Bangsamoro Government shall ensure participation of all sectors, government and non-government, individual or groups, in order to ensure that no one is left behind.

Section 3. Objectives. – This Act generally aims to provide framework on volunteerism in the Bangsamoro Autonomous Region and to recognize and promote volunteerism as one of the tools for development of vulnerable and disadvantaged communities in the region.

Section 4. Definition of Terms. – The terms used in this Act shall mean as follows:

- a. ***Volunteerism*** – refers to an act involving a wide range of activities, including traditional forms of mutual aid and development interventions that provides an enabling and empowering environment both on the part of the beneficiary receiving and the volunteer rendering the act, undertaken for reasons arising from socio-developmental, business or corporate orientation, commitment or conviction for the attainment of the public good and where monetary and other incentives or reward are not the primary motivating factors.¹⁹
- b. ***Volunteers*** – refer to individuals or groups who, for reasons arising from their socio-developmental, business and corporate orientation, commitment or conviction, contribute time, service, and resources, whether on full-time or part-time basis, to a just and essential social development cause, mission, or endeavor in the belief that their activity is mutually meaningful and beneficial to public interest as well as to themselves.²⁰

Section 5. Modalities of Volunteerism in the Bangsamoro. – The modalities of volunteerism in the Bangsamoro, include but not limited to the following:

- a. ***Volunteerism in Disasters.*** – This involves consistent individual or group participation in disaster preparedness and response activities undertaken either by the government agencies or non-government organizations;
- b. ***Volunteerism in Community Activities.*** – This covers volunteerism of individuals or groups in activities that benefit the vulnerable and disadvantaged sectors, like women, children, elderly, differently-abled persons, orphans, and indigenous peoples;
- c. ***Volunteerism in Agriculture and Aquaculture Sectors.*** – This involves volunteerism of individual or group activities and initiatives that help promote productivity and improve the income of farmers and fisherfolks;
- d. ***Volunteerism in Health Sector.*** – This involves individual or group community volunteerism on health-related activities that help save lives, reduce malnutrition, and maternal and child mortality and morbidity;
- e. ***Volunteerism in Education Sector.*** – This involves individual or group volunteerism in activities that help improve access to education of less fortunate children especially those in the geographically isolated and disadvantaged areas (GIDA);
- f. ***Volunteerism in the Non-Government Organizations.*** – This covers individuals or groups who have been serving as volunteers in the non-profit organizations that are advancing the rights, welfare and protection of vulnerable and disadvantaged sectors; and

¹⁹ Based on Republic Act No. 9418 or An Act Institutionalizing Strategy for Rural Development, Strengthening Volunteerism and for Other Purposes

²⁰ Ibid

- g. *Volunteerism in Volunteer Organizations.*** – This pertains to non-profit organizations that promote and deliver volunteerism-related programs and activities among vulnerable and disadvantaged sectors of the community in the Bangsamoro Autonomous Region.

Section 6. Bangsamoro Volunteers Advisory Body (BVAB). – There is hereby created a Bangsamoro Volunteers Advisory Body composed of the following composition:

- a. Cabinet Secretary, Office of the Chief Minister (OCM) as Chair;
- b. Director General, Bangsamoro Planning and Development Authority (BPDA) as Co-Chair;
- c. Director General, Ministry of Finance, Budget, and Management (MFBM);
- d. Director General, Ministry of Education, Higher and Technical Education (MBHTE) as Member;
- e. Director General, Ministry of Interior and Local Government (MILG) as Member;
- f. Director General, Ministry of Social Welfare Service and Development (MSSD) as Member;
- g. Director General, Ministry of Health (MOH);
- h. Representative from Civil Society Organizations as Member;
- i. Representative from the Academe as Member; and
- j. Representative from the Business Sector as Member.

The representatives from the civil society organizations, the academe and the business sector shall be appointed by the Chief Minister and serve for the period of three (3) years. They shall be entitled for per diem in every meeting.

The Board shall meet at least twice a year, once each semester. It shall adopt its internal rules and procedures.

Section 7. Functions of the Bangsamoro Volunteers Advisory Body. – The Bangsamoro Volunteers Advisory Body has the following functions:

- a. Adopt policies, plans, programs, and projects that will advance volunteerism in the Bangsamoro consistent with the national volunteerism policies;
- b. Provide guidance and advisory services on volunteer matters;
- c. Adopt guidelines for recognition and for a volunteerism awards system in the Bangsamoro Autonomous Region;
- d. Recommend volunteers from the Bangsamoro Autonomous Region for national and international recognition; and
- e. Serve as a venue for enhancing policies and measures that will link volunteerism to the services of government.

Section 8. Creation of Bangsamoro Volunteer's Coordinating Bureau (BVCB).

– There is hereby created a Bangsamoro Volunteer's Coordinating Bureau as an attached Bureau under the BPDA.

Section 9. Powers and Functions of the Bangsamoro Volunteer's Coordinating Bureau. – The Bangsamoro Volunteer's Coordinating Bureau has the following powers and functions:

- a. Receive, manage and administer funds and donations through the BPDA, from all sources including foreign assistance, subject to usual accounting and auditing rules and regulations;
- b. Enter in to contract and agreements through the BPDA relative to volunteerism;
- c. Recommend policies, plans, programs and projects to the Bangsamoro Volunteers Advisory Body for the promotion and development of volunteerism in the Bangsamoro Autonomous Region;
- d. Recommend guidelines for a volunteerism recognition and awards system in the Bangsamoro;
- e. Assess, review and recommend volunteers for recognition;
- f. Coordinate and establish linkage and network with the Philippine National Volunteer Service Coordinating Agency (PNVSCA) and with international volunteerism organizations;
- g. Provide technical assistance to volunteers and volunteer organizations in the region;
- h. Promote volunteerism among women and youth and volunteerism as a useful mechanism in the development of communities;
- i. Document, recognize, and promote the best volunteerism practices in the Bangsamoro Autonomous Region;
- j. Monitor and evaluate volunteerism activities in the Bangsamoro Autonomous Region;
- k. Perform such other functions as may be directed by higher authorities.

Section 10. Organizational Structure of the Bangsamoro Volunteer's Coordinating Bureau. – The Bangsamoro Volunteer's Coordinating Bureau shall be composed of the following:

- a. the Office of the Regional Coordinator,
- b. the Research, Policy and Planning Division,
- c. the Coordination, and Monitoring and Evaluation Division.

The Finance and Administrative works shall be under the BPDA.

The Bureaus shall be headed by a Regional Coordinator with a salary grade of 25.

Section 11. Role of the Bangsamoro Government. – The Bangsamoro Government shall ensure the functionality of the structure herein created and the necessary support for the implementation of this Act. It shall also integrate in the its

policies the measures that will help promote volunteerism in the Bangsamoro Autonomous Region.

Section 12. Appropriations. – The funds necessary for the operationalization of this Act shall be included in the annual appropriations of the Bangsamoro Autonomous Region.

Section 13. Separability Clause. – If for any cause, any part of this Act is declared unconstitutional or contrary to the provisions of Bangsamoro Organic Law, the rest of the provisions shall remain in force and effect.

Section 14. Repealing Clause. – All laws, orders, rules and regulations, which are inconsistent with the provisions of this Act, are hereby repealed, modified, superseded, or amended accordingly.

Section 15. Effectivity. – This Act shall take effect after fifteen (15) days following its full publication in a newspaper of general circulation in the BARMM.

Adopted,


MP ENGR. BAIN TAN ADIL-AMPATUAN, MNSA